

12. *Melendez v. Kennedy, et al*, Case No. CIVSB2530506
Motion to be Relieved as Counsel for Plaintiff Melendez
8/26/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion by DK Law to be relieved as counsel for Plaintiff Melendez

Here, the DK Law firm seeks to be relieved as counsel for Plaintiff Melendez. The motion is supported by a declaration establishing good cause pursuant to rule 1.16(b) of the Rules of Court. The Court is inclined to **GRANT** this unopposed motion. Relief is not final until the ruling is served on Plaintiff and a filed proof of service demonstrating that service.

Plaintiff Melendez is ordered to appear at the next hearing. The Court will inquire regarding his plans regarding representation and prosecution of this case.

13. *Peimbert v. Perez, et al*, Case No. CIVSB2412010
Defendant's Motion for Leave to File an Amended Answer
8/26/26, 9:00 a.m., Dept. S-17

This matter was continued from June 11, 2026

The Court is inclined to **GRANT**.

Here, the initial matter was brought as an *ex parte* application for leave to file an amended answer on April 22, 2026, in order to clarify a statute of limitations affirmative defense. The supporting declaration did not include a proposed amended answer at that time. (See Lopez Decl., filed April 21, 2026.)

The matter was twice continued to allow the parties to continue to meet and confer and also for further briefing. A supplemental declaration that included a copy of the proposed First Amended Answer was submitted on July 30, 2026. No further opposition was submitted.

14. *Coleman v. Monique, et al*, Case No. CIVSB2414212

Defendant Nataly Manrique's Demurrer

8/26/26, 9:00 a.m., Dept. S-17

The Court would **SUSTAIN** this unopposed demurrer with thirty days of leave to amend.

Here, Plaintiff filed a terse 3-page Complaint on April 23, 2024, asserting injury and property damage arising from a motor vehicle accident that occurred on April 22, 2022. In this unopposed demurrer, Defendant asserts that the two-year statute of limitations for personal injury bars the action. (See Code Civ. Proc., § 335.1.) The Complaint fails to allege any equitable tolling or address this apparent shortcoming. Notably, the demurrer does not address the property damage statute of limitations. (See Code Civ. Proc., § 338.) The Court would sustain but grant leave to amend to allow Plaintiff an opportunity to address the statute of limitations issue.

16. *Portfolio Recovery Associates, LLC, v. Coley*, Case No. CIVSB2214509

Defendant's Motion to Set Aside Judgment

8/26/26, 9:00 a.m., Dept. S-17

This matter was continued from June 10, 2026

Tentative Ruling

The Court would **GRANT**. Defendant's general appearance is sufficient to submit him to the jurisdiction of the Court. A responsive pleading is due within twenty (20) days.

Case Summary

This is a collections case. Plaintiff alleges maintained a credit account founded in writing with Plaintiff, with periodic billing, that required payment thereon. However, Plaintiff stopped paying on the account on February 10, 2020, leaving an open balance that is the subject of this suit. On July 12, 2022, Plaintiff filed suit for (1) account stated and (2) open book account.

Relevant here, on September 9, 2022, Plaintiff filed a proof of service (POS) stating that Defendant was served at his home address. (See Compl., ¶11 & Exh. A [billing showing address].) The POS indicates personal service on a "brown-haired white female".